

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 838

BY APPROPRIATIONS COMMITTEE

AN ACT

RELATING TO THE STATE BUDGET; AMENDING SECTION 67-3507, IDAHO CODE, TO PROVIDE FOR THE EXECUTIVE BUDGET DOCUMENT TO INCLUDE CERTAIN INFORMATION PERTAINING TO CERTAIN RECOMMENDATIONS AND TO MAKE A TECHNICAL CORRECTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-3507, Idaho Code, be, and the same is hereby amended to read as follows:

67-3507. EXECUTIVE BUDGET. (1) The executive budget document shall consist of the following four (4) parts:

~~(1)~~ (a) Part I of the executive budget document shall consist of a budget message by the governor that shall outline the financial plan of the executive department of the state government for the next fiscal year, describing the important features of the financial plan.

~~(2)~~ (b) Part II of the budget document shall present in detail for the next fiscal year, as minimum information to be included in ~~Part~~ part II, items showing estimates of agency needs based on the governor's recommendations to meet the expenditure needs of the state from all available funds classified by agencies and showing the cost of each major program. Part II shall also set forth the governor's recommendations for the capital program. All moneys, including federal and local moneys and inter-agency receipts received for any purpose, shall be accounted for in the budget.

~~(3)~~ (c) Part III of the budget document shall consist of the annual performance plans required in section 67-1904, Idaho Code.

~~(4)~~ (d) Part IV of the budget document shall consist of the federal funding reports required under section 67-1917, Idaho Code, and the disclosures required under section 67-3502(1)(e), Idaho Code.

(2) If the executive budget document contains a recommendation that would require the legislature to pass legislation in order for such recommendation to be implemented, the budget document shall include:

(a) A draft of any legislation necessary to implement such recommendation; and

(b) The names of at least one (1) member of the house of representatives and at least one (1) member of the senate who are willing to sponsor such legislation.

(3) If the executive budget document contains a recommendation that would require the legislature to pass conditions, limitations, and restrictions language in order for such recommendation to be implemented, the budget document shall include draft conditions, limitations, and restrictions language necessary to implement any such recommendation.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.